

Orissa Secretariat Private Secretaries Service Rules, 1997

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State of Odisha - Act

Orissa Secretariat Private Secretaries Service Rules, 1997

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Orissa Secretariat Private Secretaries Service Rules, 1997

Rule ORISSA-SECRETARIAT-PRIVATE-SECRETARIES-SERVICE-RULES-1997 of 1997

Published on 21 January 1998

Commenced on 21 January 1998

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Orissa Secretariat Private Secretaries Service Rules, 1997

Published vide Notification No. 3699-SL-1-26/97-ST. dated 21st January, 1998, Orissa Gazette No. 6 dated 6.2.1998

Home Department

No. 3699-SL-1-26/97-ST. 21st January, 1998. - In exercise of the powers conferred by the proviso to Article 309 of the Constitution of India, the Governor of Orissa is pleased to make the following rules for regulating the method of recruitment to the Orissa Secretariat Private Secretaries Service, namely :-

1.

Short title and commencement.

(1)

These rules may be called the Orissa Secretariat Private Secretaries Service Rules, 1997.

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules, unless the context otherwise requires

(a)

"Board" means the Cadre constituted under Rule 3;

(b)

"Cadre" means the Cadre constituted under Rule 3;

(c)

"Commission" means the Orissa Public Service Commission;

(d)

"Department" means a Department of the Secretariat as prescribed in the Rules of Business framed under clause (3) of Article 166 of the Constitution of India;

(e)

"Government" means the Government of Orissa;

(f)

"Personal Assistant" means Personal Assistants belonging to the Orissa Secretariat Cadre of Stenographers;

(g)

"Secretary" means a Secretary to the Government and includes a Special Secretary, an additional Secretary, an ex officio Secretary and ex officio Additional Secretary;

(h)

"Select List" means the list approved under Rule 10;

(i)

"Service" means the Orissa Secretariat Private Secretaries Service constituted under these rules; and

(j)

"Year" means the Calendar Year.

3.

Constitution of the service.

(1)

The service shall consist of the following categories of posts each constituting a separate cadre, namely

(a)

[Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

(b)

[Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

and

(c)

[Principal Private Secretary.]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

(2)

The rank of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

shall be equal with that of Section Officer, Level-Ie Rank of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

shall be equal with that of Under-Secretary and the rank of [Principal Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

shall be equal to that of Deputy Secretary to Government.

4.

Cadre Strength.

(1)

The cadre of the Service shall consist of such number of permanent and temporary posts as the Government may, from time to time, decide in this behalf.

(2)

The strength of the cadre shall also include deputation reserve quota and Leave Reserve quota which shall be 10% (ten per cent) of the total number of duty posts in each grade of Private Secretary.

5.

Eligibility and Method of Recruitment to the Service.

(1)

The posts of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

in the service shall be filled up by promotion of Personal Assistants.

(2)

The posts of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

in the service shall be filled up by promotion of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

,

(3)

The posts of [Principal Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

in the service shall be filled up by promotion of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

,

(4)

Personal Assistant, who has not completed five years of continuous service as such on or before the 1st January of the year in which the board meets, shall not be eligible for promotion to the post of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

.

(5)

[Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

who has not completed five years of continuous service as such on or before the 1st January of the year in which the board meets, shall not be eligible for promotion to the post of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

.

(6)

[Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

who has not completed two years of continuous, service as such on or before the 1st January of the year in which the board meets shall not be eligible for promotion to the post of [Principal Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

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6.

Constitution of Selection Board.

(1)

There shall be constituted a Board for selection of Personal Assistants and [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

for promotion to the post of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

, and [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

respectively with the following members, namely:-

(a)

Secretary to Government, Home Department

.. Chairman

(b)

Secretary to Government, Finance Department

.. Member

(c)

Special Secretary to Government General Administration

Department

.. Member

(2)

There shall be constituted Board for selection of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

for promotion to the post of [Principal Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

with the following Members namely

(a)

Chief Secretary, Orissa

.. Chairman

(b)

Secretary to Government, Home Department

.. Member

(c)

Secretary to Government, Finance Department

.. Member

7.

Meeting of the Selection Board.

- The Board shall ordinarily meet in the month of January each year:

Provided that the Board may, if the select list has been exhausted or for any other good and sufficient reason to be recorder in writing, meet more than once in a year.

8.

Preparation of a list by the Selection Board of Officers suitable for promotion to the higher post.

(1)

The Boards at their meetings shall prepare the following lists;

(a)

List of personal Assistants suitable for promotion to the posts of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

(b)

List of [Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

suitable for promotion tot he posts of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

,

(c)

List of [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

suitable for promotion to the post of [Principal Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

,

(2)

The Selection of Personal Assistants/[Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

and [Senior Private Secretary]

[Substituted vide O.G.No. 21 dated 21.5.1999.]

for inclusion in the lists prepared by the Board under sub-rule (1) shall be based on merit and suitability in all respect sixth due regard to the seniority.

(3)

The names of the Officers in each Grade who are eligible for promotion and coming within the zone of consideration shall be arranged in order of seniority.

(4)

The Board while considering the promotion cases of eligible officers shall follow :

(i)

The provisions contained in the Orissa Civil services (Zone of consideration for promotion) Rules, 1988.

Separate provision is made in Rule 15

(ii)

The provisions contained in the Orissa Civil Services (Criteria for Promotion) Rules 1992; and

(iii)

The instructions issued by the State Government from time to time, containing the procedure to be adopted by the Departmental Promotion Committee while considering the case of promotion of officers to the next higher grade when disciplinary or criminal proceedings are pending against such officers.

(5)

The number of officers suitable recommended for promotion to the next higher rank shall not exceed the number of vacancies notified to the Board.

9.

Constitution with Commission.

(1)

The lists prepared in accordance with rule 8 shall be seen to the Commission by the Home Department along with all confidential records in respect of all eligible persons for their concurrence.

(2)

The Commission shall consider the list along with the records received from the Home Department under Sub-rule (1) and may concur in the list unless it considers any change necessary :

(3)

The Commission may, after making necessary changes, if any, give concurrence to the list and send the same to the Home Department.

10.

Select list.

(1)

The list after concurrence of the Commission, shall be placed before the Government for approval with modifications, if any after which the said list shall be final and called as select list.

(2)

The select list approved by the Government under sub-rule (1) shall remain in force for one year from the date of its approval.

11.

Government may, at any time for grave lapse in the conduct or deterioration in the standard of performance of duties on the part of any officer included in the select list, remove the name of such officer from the said list in consultation with the Commission.

12.

Appointment to the service.

- Appointment to the service shall be made by the Government in the order the names appear in the select list for the time being in force.

13.

Probation.

(1)

Every person appointed, to a post in the service shall be on probation for a period of one year from the date of his appointment. If during or at the end of the said period he is found unfit to continue further, he shall be reverted to his former post :

Provided that Government may in appropriate case extended the period of probation not exceeding one year from the date of expiry of normal period of probation :

Provided further that the probation period shall not include the following namely -

(a)

extra ordinary leave :

(b)

period of unauthorised absence; and

(c)

any other period held to be not being on actual duty.

(2)

The date of completion of probation in each case shall be verified by an office order and shall be recorded in the Service Book.

14.

Seniority.

- The inter seniority of officer appointed to a particular cadre of the service shall be in the order indicated in the select list.

15.

Reservation of vacancies for Scheduled Castes and Scheduled tribes.

- Reservation of vacancies in the Services, shall be made and such vacancies shall be filled up in accordance with the provisions of the Orissa Reservation of vacancies in Posts and Services (for Scheduled Castes and Scheduled Tribes) Act, 1975 and the rules made thereunder.

16.

Relaxation.

- When it is considered by the Government that it is necessary or expedient to do so in the public interest, it may by order for reasons to be recorded in writing, relax any of the provisions of these rules in respect of any class or category of persons.

17.

Repeal and Savings.

- The Orissa Private Secretaries to Secretaries to Department of Government Rules, 1974 are hereby repealed :

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken under the provisions of these rules.

18.

interpretation.

- If any question arises relating to the interpretation of these rules, it shall be referred to the Government in the Home Department for decision.

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